

Tentative Rulings for July 31, 2026 Department PS2

**To request oral argument, you must notify Judicial Secretary
Carol Delfosse-Kidd at (760) 904-5722
and inform all other counsel no later than 4:30 p.m.**

This court follows California Rules of Court, Rule 3.1308 (a) (1) for tentative rulings (see Riverside Superior Court Local Rule 3316). Tentative Rulings for each law & motion matter are posted on the Internet by 3:00 p.m. on the court day immediately before the hearing at [Riverside Superior Court-Tentative Rulings](#). If you do not have Internet access, you may obtain the tentative ruling by telephone at (760) 904-5722.

To request oral argument, no later than 4:30 p.m. on the court day before the hearing you must (1) notify the judicial secretary for Department PS2 at (760) 904-5722 and (2) inform all other parties of the request and of their need to appear remotely, as stated below. If no request for oral argument is made by 4:30 p.m., the tentative ruling **will become the final ruling** on the matter effective the date of the hearing. **UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.**

COUNSEL AND SELF-REPRESENTED PARTIES ARE ENCOURAGED TO APPEAR AT ANY LAW AND MOTION DEPARTMENT TELEPHONICALLY WHEN REQUESTING ORAL ARGUMENTS.

For information and instructions on remote appearances via **ZOOM**, visit the court's website at [Riverside Superior Court-Remote Appearances](#)

You may also make a Telephonic Appearance: On the day of the hearing, call into one of the below listed phone numbers, and input the meeting number (followed by #):

- Call-in Numbers: 1-833-568-8864 (Toll Free), 1-669-254-5252,
1-669-216-1590, 1-551-285-1373 or 1-646-828-7666
- Meeting Number: **161 644 5616**

Please **MUTE** your phone until your case is called and it is your turn to speak. It is important to note that you must call fifteen (15) minutes prior to the scheduled hearing time to check in or there may be a delay in your case being heard.

Riverside Superior Court provides official court reporters for hearings on law and motion matters only for litigants who have been granted fee waivers and only upon their timely request. (See General Administrative Order No. 2021-19-1) Other parties desiring a record of the hearing must retain a reporter pro tempore.

1.

CASE #	CASE NAME	HEARING NAME
CVPS2304017	MIRAMORE, LLC VS TYLER	MOTION TO QUASH SUBPOENA FOR PRODUCTION OF BUSINESS RECORDS BY AC PALM DESERT CORPORATION, JOHN WHITE

Tentative Ruling: Denied.

Responding party to provide notice pursuant to CCP 1019.5.

This is a fraud action by Plaintiff Miramore, LLC against Defendants Richard Tyler, Lisa Trafficante, AC Plam Desert Corporation, John white, Brian Sullivan, Hilgenberg Realty, inc. and Advantage Inspection Professionals, LLC alleging 8 causes of action for 1) violation of Civil Code section 1102, et. se1., 2) failure to disclose material facts, 3) fraud, 4) breach of duty to disclose, 5) breach of duty to be honest and truthful, 6) negligence, 7) negligence, and 8) negligence.

Defendant Lisa Trafficante filed a Cross-Complaint against Richard Tyler, AC Palm Desert Corporation and John White.

Defendant/Cross-Defendant John White moves the court to quash Plaintiff Miramore, LLC's subpoena issued to GoDaddy.com, LLC for the production of business records, or in the alternative for a protective order. AC and White assert that the SDT seeks information protected by federal law and violates Defendants' rights to privacy, is overbroad and unduly burdensome and seeks information obtainable through less intrusive means.

In opposition, Miramore, LLC asserts that White cannot dispute that his emails concerning the underlying real estate transaction are discoverable. Plaintiff served the focused subpoena to GoDaddy only after ordinary discovery failed and the SDT should not be quashed merely because White later announced that the previously "lost" emails had been recovered. Plaintiff first requested the emails from Defendant through written discovery. His verified responses promised production, but no responsive emails were produced. Defense counsel later explained that the emails had been lost when Defendant replaced his laptop. At his deposition, Defendant admitted that GoDaddy hosted his email account, that he had never contacted GoDaddy about recovery, and that he could not recall searching his cell phone for responsive emails. Plaintiff then provided defense counsel with a draft subpoena and repeatedly invited objections or proposed revisions. After receiving no response to the draft or three follow-up inquiries, Plaintiff served Defendant with the Notice to Consumer and subpoena. When Defendant objected, Plaintiff proposed an Informal Discovery Conference and addressed each concern raised by defense counsel, including by offering to exclude identified attorneys, law firms, and email addresses. Although defense counsel requested that the subpoena be narrowed, counsel did not provide the names, addresses, search terms, or other specific revisions necessary to implement those exclusions, and did not respond to Plaintiff's proposal for an IDC. Separately, on March 23, 2026—after receiving the Notice to Consumer—defense counsel disclosed for the first time that Defendant's technical professional had recovered certain data and that responsive, nonprivileged emails would be reviewed and produced. Nearly four months later, no responsive emails have been produced. That late recovery does not eliminate Plaintiff's reasonable need to verify the completeness and integrity of the production through the independent custodian. The subpoena is confined to a relevant period, identified participants and subjects, and communications concerning the later recovery effort.

In reply, White asserts that the opposition concedes the two facts that dispose of this motion. First, the Subpoena commands GoDaddy to produce the contents of Mr. White's stored email.

Second, Mr. White has never consented to that disclosure. Plaintiff's own principal authority resolves what follows. AC and White cite to *Negro v. Superior Court* (2014) 230 Cal.App.4th 879 in support of this assertion. AC and White assert that as there is no consent and no court order the subpoena as served is unenforceable and should be quashed.

Motion to Quash

Code of Civil Procedure section 1987.1, which applies to subpoenas, states in turn: (a) If a subpoena requires the attendance of a witness or the production of books, documents, electronically stored information, or other things before a court, or at the trial of an issue therein, or at the taking of a deposition, the court, upon motion reasonably made by any person described in subdivision (b), or upon the court's own motion after giving counsel notice and an opportunity to be heard, may make an order quashing the subpoena entirely, modifying it, or directing compliance with it upon those terms or conditions as the court shall declare, including protective orders. In addition, the court may make any other order as may be appropriate to protect the person from unreasonable or oppressive demands . . . (CCP §1987.1.)

Here, White moves to quash the subpoena on the grounds it is prohibited by the Stored Communications Act, 18 U.S.C. section 2702(b)(3). The Act states that a provider of an "electronic communication service ... shall not knowingly divulge ... the contents of a communication while in electronic storage by that service...." (18 U.S.C. §2702(a)(1).) a provider is only excused from these prohibitions if the user gives "lawful consent" to disclosure. (18 U.S.C. §2702(b)(3).) consent is effective as to a given communication if given by "the originator or an addressee or intended recipient of such communication." (18 U.S.C. §2702(b)(3).) Such consent may not be constructive, implied in law, or otherwise imputed to the user by a court. (*Negro v. Superior Court* (2014) 230 Cal.App.4th 879, 889.)

"[A]ny state law that requires a person to violate federal law, is preempted and unenforceable. (*Olszewski v. Scipps Health* (2003) 30 Cal.4th 798, 815.) Therefore California's discovery laws cannot be enforced in a way that compels [GoDaddy.com] to make disclosures violating the Act." (*Negro v. Superior Court* (2014) 230 Cal.App.4th 879, 889)

Miramore cites to *Negro* in support of its opposition asserting that the Act does not make all civil subpoenas unenforceable and the court can require White's consent on pain of discovery sanctions. *Negro* notes that if such consent is given then a civil subpoena for emails would not be in violation of the Act. While the court in *Negro* noted as much, it does not change the facts before the court, which is devoid of a court order requiring White to consent or be subject to discovery sanctions. Without White's consent, either voluntarily or given under the court's threat of discovery sanctions, the court is required to grant the motion to quash.

2.

CASE #	CASE NAME	HEARING NAME
CVPS2408394	DESERT HEALTHCARE DISTRICT VS ALL PERSONS INTERESTED IN THE MATTER HEREIN DESCRIBED LEASE PURCHASE TRANSACTION AND RELATED CONTRACTS AND OBLIGATIONS OF DESERT HEALTHCARE DISTRICT WITH RESPECT TO DESERT REGIONAL MEDICAL CENTER, INC.	DESERT HEALTHCARE DISTRICT AND DESERT REGIONAL MEDICAL CENTER, INC.'S JOINT NOTICE OF MOTION AND MOTION FOR PROTECTIVE ORDER

Tentative Ruling: Granted in part.

Responding party to provide notice pursuant to CCP 1019.5.

Plaintiff Desert Healthcare District filed a Complaint for Validation on December 31, 2024 against all persons interested in the matter of a certain lease to purchase transaction and related contracts and obligations of Desert Healthcare District with respect to Desert Regional Medical Center. The Complaint seeks to validate the action taken by Plaintiff regarding the lease purchase agreement (LPA) and the actions of District's Board in approving a fairness opinion from an independent consultant and approving the LPA and ordering that a measure relating to approval of the LPA be placed on the ballot (Measure AA), which was approved by the voters by a margin of 72.34% .

The matter is currently set for a long cause court trial on September 4, 2026.

Leading up to the aforementioned court trial, the parties have had ongoing discovery disputes in this case. Specifically, the scope of discovery that should be permitted in the underlying validation action. Now DHD and DRMC move the court for a protective order to prohibit the depositions of the District's and Medical Center's most qualified persons. Moving parties assert that this court has made clear that validation actions are typically limited to a review of the administrative record and that discovery into evidence outside of the record is only permitted in exceptional circumstances which are not present here. Moving parties assert that Eisenhower has not met its burden to show any circumstances that justifies discovery outside of the administrative record. Eisenhower's deposition notices seek information that is outside the scope of what the Court has already deemed relevant to this action, and would result in unwarranted annoyance and oppression, undue burden and expense, and clearly seek information protected by the attorney-client privilege, common-interest doctrine, and work product doctrine.

In opposition, Eisenhower asserts that the court ruled it is entitled to discovery and the deposition notices cover narrow targeted topics. Eisenhower also asserts that Eisenhower unilaterally cancelled the scheduled depositions and untimely filed this motion. Eisenhower asserts that Plaintiffs' refusal to attend duly noted depositions without a stay or court order merits denying the motion. Eisenhower further asserts that Plaintiffs fail to demonstrate good cause for protective order on the three narrowly tailored topics: 1) The Amended Interrogatory Responses, which the court found relevant, 2) The Administrative record and the compilation of the administrative record, and 3) trial witnesses. Lastly, Eisenhower asserts that a blanket prohibition on all depositions is unjustified and without precedent.

In reply, Plaintiffs reassert that a validation action is limited to the administrative record and Eisenhower has failed to show that depositions should be permitted in this action. Plaintiffs assert that topic 1 improperly seeks to examine the counsel-driven process for preparing interrogatory responses and is unnecessary because the interrogatory speaks for itself. As to topic 2, Plaintiffs assert it improperly seeks a PMQ deposition on record compilation even though the Amended administrative record was certified by a District employee. As to topic 3, Plaintiffs assert that it seeks trial strategy and is unnecessary in a validation action. Should the court follow Plaintiffs' request the trial will be based solely on the administrative record without oral testimony. However, to the extent that the court permits witness testimony at trial, then the parties will exchange pre-trial witness lists at the appropriate time as governed by the local rules.

Protective Order

Code of Civil Procedure section 2025.420 authorizes the Court, "[b]efore, during, or after a deposition," to make "any order that justice requires" to protect a party or deponent from unwarranted annoyance, embarrassment, or oppression, or undue burden and expense." (CCP §2025.420(a)-(b).)

Topic 1

As this court has previously addressed, discovery is not disallowed in a validation action. However, the only relevant evidence subject to discovery would be anything that could support a finding that the action taken was invalid/unlawful. The court previously granted Eisenhower's motion to compel further response to interrogatory number 21 that requested DRMC to state all facts in support of its contention that any antitrust concerns in the 2027 Lease Purchase Agreement are "outweighed by its benefits to the relevant market."

Plaintiffs amended their interrogatory response and now Eisenhower seeks to depose the PMQ regarding the preparation of the amended response, including any documents, communications, or information referenced in the amended response and all documents, communications or information relied upon in preparing the amended response.

As the issue of potential antitrust concerns is discoverable, topic 1 is open to further discovery to inquire into the basis for the amended response and how antitrust issues were addressed and how it was determined that such concerns were outweighed by the benefits to the relevant market.
DENIED

Topic 2

As Plaintiffs assert that this validation action hinges on the administrative record, its contents and preparation are a proper basis for further discovery in this action. Accordingly, the court denies the motion for a protective order as to Topic 2.

Topic 3

Eisenhower fails to show good cause why a PMQ deposition is needed with respect to potential trial witnesses and topics with which they would testify. The court's rules set forth the process for the disclosure of trial witnesses. GRANTED.